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Case Number: 25STCP03932 Hearing Date: August 6, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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LUIGI GIROTTO,

Petitioner(s),

vs.

DEPARTMENT
OF MOTOR VEHICLES,

Respondent(s).

Case No.:

25STCP03932

Hearing Date:

August 6, 2026

[TENTATIVE] RULING

ON PETITION FOR WRIT OF MANDATE

Petitioner Luigi Giroto ("Petitioner")

petitions for a writ of administrative mandate against Respondent Department of Motor Vehicles ("Respondent") directing it to set aside its decision to suspend his driver license.

The petition for writ of mandate
is denied.

I.

Factual Background

On April 8, 2025, Petitioner suffered an episodic lapse of consciousness ("Episode"), and the treating physician submitted a Confidential Morbidity Report ("CMR") to Respondent on April 9, 2025 in accordance with Health & Safety Code section 103900. (AR 8.)[1]

Another physician at the same facility also submitted a CMR. (AR 9.) Both listed the date of onset and date of occurrence as April 8, 2025. (AR 8, 9.)

Respondent directed Petitioner to have his doctor fill out certain medical forms. (AR 10-14.) Respondent's family physician (Dr. Eshom) prepared and submitted the Driver Medical Evaluation form ("DME") on May 7, 2025. (AR 10-14.) Per the DME that Dr. Eshom filled out and submitted, Petitioner had the Episode on April 22, 2025 (AR 13) and was prescribed medications that the physician indicated have side effects which would interfere with Petitioner's ability to drive safely. (AR 11.) Where directed to explain, the physician wrote "unknown." (AR 11.) The form directs the physician to state whether Petitioner's condition affects safe driving. (AR 11.) The physician indicated "Yes," but beside this indication, where the DME directs the physician to provide further explanation for a "yes" answer, Dr. Eshom wrote only, "unknown." Dr. Eshom indicated "uncertain" as to whether Petitioner experienced each of sporadic loss of awareness, loss of consciousness, and impaired motor function. (AR 13.)

On May 12, 2025, Respondent reviewed the information and determined Petitioner presented a risk to traffic safety. (AR 6-7.) The next day, Respondent provided Petitioner a notice of suspension. (AR 61-62.) Petitioner requested a hearing, and on May 28, 2025, Driving Safety Hearing Officer Lauren Medina ("Hearing Officer") heard the

matter. (AR 25-58.)

On May 28, 2025, the Hearing Officer issued a Notification of Findings And Decision ("Decision") (AR 3-5) concluding that due to Petitioner's medical condition and ongoing medical investigation into the cause of the Episode, Petitioner's driver license must be suspended for additional time. (AR 4.)

II.

Procedural History

On October 10, 2025, Petitioner filed his petition. On January 15, 2026, Respondent filed its answer to the petition.

On April 28, 2026, Petitioner filed his opening brief. On June 17, 2026, Respondent filed its opposition. On July 23, 2026, Petitioner filed his reply.

III.

Standard of Review

Code of Civil Procedure ("CCP") section 1094.5 is the administrative mandamus provision that structures the procedure for judicial review of adjudicatory decisions rendered by administrative agencies. (*Topanga Ass'n for a Scenic Community v. County of Los Angeles* (1974) 11 Cal.3d 506, 514-15) ["Topanga"].) Section 1094.5 does not specify which cases are subject to independent review, leaving that issue to the courts. (*Fukuda v. City of Angels* (1999) 20 Cal.4th 805, 811 ["Fukuda"].) In cases reviewing decisions that affect a vested, fundamental right, the trial court exercises independent judgment on the evidence. (*Bixby v. Pierno* (1971) 4 Cal.3d 130, 143 ["Bixby"]; see CCP § 1094.5(c).)

While driving is a privilege, not a right, suspension or revocation of a driver license is a fundamental right for purposes of judicial review and requires application of the independent judgment test. (*Berlinghieri v. Department of Motor Vehicles* (1983) 33 Cal.3d 392, 398.) Under the independent judgment test, "the trial court not only examines the administrative record for errors of law but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo." (*Id.* at 395.) The court must draw its own reasonable inferences

from the evidence and make its own credibility determinations. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal.App.4th 860, 868 ["*Morrison*"].) In short, the court substitutes its judgment for the agency's regarding the basic facts of what happened, when and why, and the credibility of witnesses. (*Guymon v. Board of Accountancy* (1976) 55 Cal.App.3d 1010, 1013-16 ["*Guymon*"].)

"In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence." (*Fukuda, supra*, 20 Cal.4th at 817.) Unless a petitioner can demonstrate that the agency's actions are not grounded upon any reasonable basis in law or any substantial basis in fact, the courts should not interfere with the agency's discretion or substitute their wisdom for that of the agency. (*Bixby, supra*, 4 Cal.3d at 150-151; *Bank of America v. State Water Resources Control Board* (1974) 42 Cal.App.3d 198, 208.)

Where the issue is whether a fair administrative hearing was conducted, a petitioner is entitled to an independent judicial determination of the issue. (*Sinaiko v. Superior Court* (2004) 122 Cal.App.4th 1133, 1141; *Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93, 101.) Therefore, the court must independently review the fairness of the administrative proceedings as a legal issue. (*Rosenblit v. Superior Court*, (1991) 231 Cal.App.3d 1434, 1438.)

The agency's decision must be based on a preponderance of the evidence presented at the hearing. (*Board of Medical Quality Assurance v. Superior Court*, (1977) 73 Cal.App.3d 860, 862.) The hearing officer is only required to issue findings that give enough explanation so that parties may determine whether, and upon what basis, to review the decision. (*Topanga, supra*, 11 Cal.3d at 514-15.) Implicit in CCP section 1094.5 is a requirement that the agency set forth findings to bridge the analytic gap between the raw evidence and ultimate decision or order. (*Id.* at 515.)

An agency is presumed to have regularly performed its official duties (Evid. Code § 664), and the petitioner therefore has the burden of proof on mandamus. (*Steele v. Los Angeles County*

Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) “[T]he burden of proof falls upon the party attacking the administrative decision to demonstrate wherein the proceedings were unfair, in excess of jurisdiction or showed prejudicial abuse of discretion.” (Alford v. Pierno, (1972) 27 Cal.App.3d 682, 691 [“Alford”].)

Taken together, these standards require Petitioner to do more than show uncertainty in the evidence. He must show that Respondent’s decision lacked any reasonable factual or legal foundation. As explained below, he has not done so.

IV.

Analysis

Petitioner seeks administrative mandamus to set aside Respondent’s decision to suspend his license on the grounds that (1) Respondent did not proceed in the manner required by law; (2) Respondent’s findings are not supported by the evidence; and (3) Respondent abused its discretion by disregarding material evidence.

1.

Extra-Record Evidence

“The general rule is that a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency.” (Toyota of Visalia v. New Motor Vehicle Bd. (1987) 188 Cal.App.3d 872, 881.) The court can only admit additional evidence where the party seeking its inclusion shows (1) the evidence could not have been presented to the agency in the first instance in the exercise of reasonable diligence or (2) was improperly excluded. (CCP § 1094.5(e); Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 578 [“Western States”]; Eureka Citizens for Responsible Govt. v. City of Eureka (2007) 147 Cal.App.4th 357, 366.) Extra-record evidence is admissible only if it is relevant. (Western States at 570.)

While Petitioner does not bring a motion to augment,[2]

Petitioner presents extra-record evidence he argues may be considered as it could not in the exercise of reasonable diligence have been produced at the hearing. (CCP § 1094.5(e).) Petitioner

presents a cardiologist report dated August 13, 2025 showing no signs of recurrence after the Episode. (Giroto Decl., Ex. 1 at pp. 2, 6.)

Petitioner makes a minimal showing that the evidence could not have been produced at the hearing, but Respondent does not argue the evidence is inadmissible under the CCP section 1094.5 standard. Respondent notes, however, that the Court should if necessary remand for further consideration by Respondent rather than set aside its Decision on the basis of the new evidence. (Opp. at 12-13; CCP § 1094.5(e), (f).)

On a follow-up physician appointment, the physician again stated the syncope condition was stable, observed various examination results were “assuring,” and noted “[n]o signs of recurrence.” (Giroto Decl., Ex. 1 at p. 6.) However, this physician also recommended further monitoring and expressed continued uncertainty as to the origin of the syncope. (Giroto Decl., Ex. 1 at p. 6.)

Even assuming admissibility under CCP section 1094.5(e), the extra-record evidence does not meaningfully advance Petitioner’s position. The August 13, 2025 record does not identify a cause for the Episode, does not state that recurrence is impossible or sufficiently unlikely, and does not opine that Petitioner can safely operate a vehicle. The cardiologist’s continued recommendation for monitoring reinforces the Hearing Officer’s conclusion that additional control time is warranted. The Court therefore declines to rely on the extra-record evidence because it does not resolve or clarify the matters at issue. Even if admitted, the extra-record evidence does not help Petitioner carry his burden of showing an abuse of discretion.

2.

Respondent Proceeded in the Manner Required by Law

Petitioner argues that Respondent did not proceed in the manner required by law by applying an incorrect legal standard. According to Petitioner, Respondent may only act summarily when it determines on investigation or reexamination that the safety of the subject or other persons on the highways requires such action. (Pet. Op. Br., citing Veh. Code § 13953.) [3] Petitioner contends that Respondent may not

suspend a license unless it can affirmatively determine that public safety requires suspension and no lesser restriction or condition will serve.[4] (Op. at 9.)

Petitioner overstates the substance of section 13953. That statute does not specify that Respondent must make findings that lesser restrictions or conditions would not suffice. There is no requirement in the statute that Respondent make an affirmative finding that Petitioner presently suffers some condition which poses a risk to himself or another person. (See § 13953.) The section provides that Respondent may suspend or revoke driving privileges if “the safety of the person subject to investigation or reexamination or the other person upon the highways require such action.” (§ 13953.) In other words, Petitioner misreads section 13953 by trying to convert a permissive safety-based authorization into a mandatory evidentiary threshold that the statute’s text simply does not support.

Further, once Petitioner’s license was suspended pursuant to section 13953 (which permits Respondent to act “forthwith and without hearing,” see § 13953), because Petitioner’s license was suspended “based upon a physical or mental condition” (AR 6-7), the suspension must continue “until evidence satisfactory to [Respondent] establishes that the cause for which the action was taken has been removed or no longer renders the person incapable of operating a motor vehicle safely.” (§ 13556(c).)

Additionally, Petitioner has the burden of showing Respondent did not proceed in the manner required by law. (Alford, supra, 27 Cal.App.3d at 691.) Critically, Petitioner identifies no portion of the Decision applying or relying on any incorrect legal standard, nor does he demonstrate that Respondent applied any narrower or more demanding framework than the Vehicle Code provides. Petitioner points to the Decision, where the Hearing Officer relies on the recency and uncertainty related to Petitioner’s Episode to determine continued suspension is required. (Pet. Op. Br. at 9-10; see AR 3-4.) That Petitioner recently experienced a brief loss of consciousness, and that such loss of consciousness is currently unexplained and so could recur, is clearly relevant to the question of whether the safety of Petitioner or others on the highway requires action by Respondent. Therefore, the Hearing Officer’s reliance on these findings does not support the proposition that the Hearing Officer applied an incorrect standard.

Moreover, neither Respondent nor the Hearing Officer at any point articulated an incorrect standard. (See AR 3-5, 25-58.) On the initial suspension, Respondent notes that the suspension should remain until Petitioner “no longer presents a risk to traffic safety.” (AR 6.) The Hearing Officer stated at the outset of the hearing, “the hearing issues for today’s hearing is to determine if a medical condition, lapse of consciousness or control affects your ability to operate a motor vehicle safely.” (AR 26.) These comport with the requirement under section 13556(c) that the suspension should continue until Respondent is satisfied the evidence shows the risk to traffic safety has abated. (§ 13556(c).)

Accordingly, Petitioner has not met his burden to show Respondent did not proceed in the manner required by law.

3.

The Weight of the Evidence Supports the Hearing Officer's Findings

Petitioner argues that the Hearing Officer’s findings were not supported by the weight of the evidence. Specifically, Petitioner argues that the DME was internally contradictory, and therefore did not constitute evidence on which the Hearing Officer could rely. Petitioner further argues that Petitioner had no second occurrence of syncope on April 22, 2025, and thus the second occurrence could not support the Decision. Finally, Petitioner contends that the Hearing Officer’s stated rationale was “predictive and precautionary, not evidentiary.”

Applying the independent judgment test, under which the court must draw its own reasonable inferences from the evidence and make its own credibility determinations while substituting its judgment for the agency’s only as to the basic facts (Morrison, *supra*, 107 Cal.App.4th at 868; Guymon, *supra*, 55 Cal.App.3d at 1013-1016), but then affording the agency’s determination significant deference (Fukuda, *supra*, 20 Cal.4th at 817), and recognizing that judicial intervention is unwarranted unless the petitioner demonstrates that the agency’s action lacks any reasonable basis in law or substantial basis in fact (Bixby, *supra*, 4 Cal.3d at 150-151; Bank of America, *supra*, 42 Cal.App.3d at 208), the Court concludes as follows:

The record consistently shows medical professionals who were unwilling to affirm that Petitioner was safe to drive. Petitioner experienced an episode of syncope. (E.g. AR 8-9.) Both CMRs indicated the two physicians were uncertain as to whether further lapses of consciousness would occur. (AR 8-9.) One treating physician indicated on the CMR that he was uncertain whether the patient should be advised not to drive or would represent a permanent driving disability. (AR 8.) Respondent's family physician indicated on the DME both "Yes" and "unknown" for whether Petitioner's condition interferes with his ability to drive safely, and indicated the same for his medication. (AR 11.) While Petitioner claims this renders the evaluation entirely meaningless, the Court infers that Petitioner's physician did not know for certain and so wrote "unknown," but was sufficiently concerned as to indicate "Yes" rather than "No." (AR 11.) This inference is supported by the physician's further indications, specifically (a) it was "uncertain" whether Petitioner displayed sporadic loss of conscious awareness, loss of consciousness, or impaired motor function; and (b) Petitioner experienced post-Episode confusion. (AR 13.) Yet another physician indicated that Petitioner's syncope was "stable," but that the cause was unclear and further examination and treatment would be considered. (AR 17.)

Based on the evidence in the record, after Petitioner's Episode, physicians were unable to determine its cause. Consequently, the physicians were unwilling to represent that Petitioner was not likely to experience recurrence.

Petitioner's argument relies heavily on attacking the quality of the DME, but the argument overlooks that uncertainty in the medical evidence does not favor Petitioner. It favors caution. Respondent is not required to resolve uncertainty in Petitioner's favor, particularly where treating physicians themselves declined to conclude that Petitioner can safely drive. The Court also disagrees that the DME's ambiguity makes it meaningless. That ambiguity cuts the other way and provides Respondent with no affirmative assurance that Petitioner could safely drive, and therefore reasonably supports a decision to maintain a suspension pending further clarity.

The Hearing Officer found that Petitioner suffers a medical condition causing lapse of consciousness or control affecting his ability to drive. (AR 3.) This is established by the

undisputed fact that Petitioner suffered a syncope episode. The Hearing Officer found “a longer period of control is required” to show Petitioner can drive safely. (AR 3.) This is well supported by the strong showing in the record that physicians were unwilling to affirmatively report otherwise; unresolved medical certainty; and evidence of ongoing changes in Petitioner’s medication regimen. These objective circumstances amount to substantial evidence supporting the suspension.

Accordingly, Petitioner has not met his burden to show the findings were not supported by the weight of evidence.

4.

Respondent Did Not Abuse Its Discretion under Topanga

Petitioner argues that Respondent abused its discretion by disregarding material evidence. Specifically, Petitioner contends the Hearing Officer observed evidentiary uncertainty regarding whether Petitioner had a second occurrence, and used that uncertain justification for the findings and decision.

The Hearing Officer’s findings of fact state that the DME had conflicting information, and this is clearly correct. (AR 3; 10-14.) Respondent’s findings also state that Petitioner testified he only had one episode. (AR 3; see AR 41-42.) Even if the Hearing Officer did rely on this uncertainty (which the record does not show), this is a question of weighing evidence.

Petitioner references Topanga, supra, 11 Cal.3d at 515, to argue “an agency abuses its discretion when it sustains an order without meaningfully considering evidence that cuts against that order.” (Pet. Op. Br. at 14.) This is not what Topanga requires. Topanga requires the administrative agency make findings that demonstrate its “analytic route” from the evidence to the action. (Topanga at 515.) In other words, the findings must “bridge the analytic gap between the raw evidence and the ultimate decision or order.” (Ibid.)

The Hearing Officer has done so in the Decision. The findings, while brief, identify the coexistent factors motivating Respondent’s decision: the recent occurrence of the Episode, unresolved causation, medication changes, ongoing medical issues, and pending diagnostic

follow-up. (AR 3-4.) These findings sufficiently “bridge the analytic gap” between the raw medical evidence and the conclusion that additional control time was required. Nothing in Topanga requires the Hearing Officer to articulate a more exhaustive explanation.

The analytic route is clear. The Hearing Officer believed that the events and medical examinations after the Episode were insufficient to show Petitioner could drive safely by the time of the hearing, and therefore declined to remove the suspension. Petitioner’s contrary argument attempts to recast evidentiary uncertainty as evidence of abuse of discretion. However, under CCP section 1094.5, uncertainty is not abuse; it is a permissible and relevant basis for caution where the safety of a driver and the public is at stake.

Accordingly, Petitioner has not met his burden to show the conclusion was not supported by the findings.

V.

Conclusion

Petitioner has not met his burden to show that Respondent failed to proceed in the manner required by law, that the findings were not supported by the weight of the evidence, or that the conclusion was not supported by the findings. The petition for administrative mandamus is DENIED.

Pursuant to Local Rule 3.231(n), respondent Department of Motor Vehicles shall prepare, serve, and ultimately file a proposed judgment.

Date: August 6, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

Because Petitioner improperly lodged the administrative record without Bates stamps, the parties' page citations do not correspond to any official pagination. Accordingly, all page references herein are based on the Court's own page count of the lodged record.

[2]

The CCP does not expressly provide for a motion to augment or correct the administrative record, but such motions are routinely made. (See e.g., *Pomona Valley Hospital Medical Center v. Superior Court* (1997) 55 Cal.App.4th 93, 101.) In general, parties should meet and confer about completeness of the record and move to augment the record to include any extra-record evidence when they cannot agree.

[3]

All further statutory references are to the Vehicle Code unless otherwise stated.

[4]

Petitioner also refers to section 12806, which he contends limits Respondent's ability to refuse to issue or renew a license to a narrow set of categories. It does not. Section 12806 grants Respondent permission to refuse a license on the enumerated basis (§ 12806 ["The department may refuse . . ."]), but does not purport to restrict or comprehensively enumerate the grounds for such action. (§ 12806.)